

SpyCare Service Agreement

This agreement, effective as of the later of the dates of signature below ("Effective Date"), is between **City of Cheyenne, WY** ("Company"), and The SpyGlass Group, LLC ("SpyGlass").

1. **SpyCare Services.** Company hereby engages SpyGlass as an independent contractor to provide the following SpyCare services:

- **HealthCheck** – SpyGlass will perform an initial optimization of Company's services immediately upon kickoff of the engagement and an annual re-optimization of Company's services which will commence on the one (1) year anniversary of the Effective Date and the two (2) year anniversary of the Effective Date which will include the following:
 - Analysis of Company billing provided to SpyGlass relating to services by local, long distance, wireless, data, Internet, and cloud/datacenter providers using SpyGlass' auditing processes;
 - Creation of complete telecommunications inventory of all services;
 - Identification of opportunities which exist in such billing for:
 - Recovery of past billing mistakes;
 - Elimination of all dormant and underused services; and
 - Reduction of overall cost;
 - Provision of access to recommendations and inventories in telecommunications expense management software used by SpyGlass.
- **MobilityCare** – Upon provision of the wireless billing and materials needed from Company, SpyGlass will commence its ongoing MobilityCare services for the length of the Initial Term and any Renewal Term, which will include the following:
 - Performance of onboarding meeting to setup mobility management software;
 - Company will provide SpyGlass full access to either their existing online access credentials to mobile service billing accounts or create a login specific to SpyGlass for online access to mobile service billing accounts.
 - In cases where Company does not have online access credentials already created, Company authorizes SpyGlass and will assist in creating appropriate online access credentials.
 - Initial load of all mobile billing accounts into the software;
 - Monthly import of Company's mobile billing information into the software;
 - Provision of access to the software that upon each successful monthly data load generates trend analysis and cost saving recommendations, maintains an inventory of all current devices, and offers management reporting;
 - Provision of monthly executive summary email report containing key mobile indicators.
- **InSights** – As part of the SpyCare service, Company will also have access to InSights for the length of the Initial Term and any Renewal Term, which will include the following:
 - Access to nationwide database of carrier pricing benchmark data;
 - Access to technology trend insights provided by SpyGlass;
 - Access to contract tracker which documents and provides visibility to all expiring service contracts under review.
- **DedicatedSupport** – As part of the SpyCare service, Company will also have access to DedicatedSupport for the length of the Initial Term and any Renewal Term, which will include the following:
 - Provision of online dashboard of critical account service provider information;
 - Addition of any new provider accounts that Company provides into online master service inventories;
 - Provision of a billing helpdesk where Company can submit tickets for billing questions for service accounts under maintenance;
 - Investigation of each helpdesk ticket and provision of feedback. Should any helpdesk ticket require corrective action, SpyGlass will attempt to correct the problem and provide confirmation;
 - Provision of access to original set of recommendations and inventories from the initial Snapshot Audit optimization and all HealthCheck reviews by way of software used by SpyGlass.

Company agrees that it will provide access to client's service billing as directed by SpyGlass to facilitate the SpyCare services described above.

2. **Term.** This agreement shall commence on the Effective Date and end **three (3) years** after the kickoff of the engagement (the "Initial Term"). Unless either party provides written notice to the other within sixty (60) days of the end of the Initial Term or any Renewal Term (as defined herein) of its desire not to renew, this agreement shall renew for successive one (1) year terms (each a "Renewal Term"). During each Renewal Term, SpyGlass will continue to

provide the SpyCare services listed under Section 1 and the parties rights and obligations under Sections 2, 3, 4 and 5 shall continue.

3. **Fees.** Company agrees to pay SpyGlass **\$9,985 per year** (the "Annual Fee") during the Initial Term and any Renewal Term. The initial Annual Fee will be invoiced on the Effective Date and shall be due within ten (10) days of receipt of such invoice. SpyGlass will invoice Company for each successive Annual Fee and payment shall be due within ten (10) days of receipt of such invoice. A late payment charge of 1.5% per month will incur on any unpaid balance invoiced under Section 3 of this agreement from the date the invoice was due. The parties agree that SpyGlass will also have the right to suspend any and all services under this agreement if any invoices are not paid in a timely manner and not be in breach of any provision of this agreement as a result thereof.

4. **Aggregate Data.** Company agrees that SpyGlass has permission to use the Company data collected within SpyGlass' tools and databases as part of providing the SpyCare services described herein for anonymous statistical purposes, including to compile aggregate performance, use or benchmarking data that relates to a group or category of services or customers, from which individual identities and characteristics have been removed ("Aggregate Data"). SpyGlass may use Aggregate Data for any lawful business purposes, provided that such information does not incorporate any personally identifiable information. SpyGlass retains all intellectual property rights in the Aggregate Data.

5. **Miscellaneous.** This agreement shall be governed by the laws of the State of Wyoming, without regard to principles of conflicts of law, and may be executed by facsimile and simultaneously in multiple counterparts. Company agrees that SpyGlass does not warranty the overall performance, Company satisfaction, or data accuracy of any telecommunications related carrier, provider, software manufacturer or vendor at any time whatsoever during or after the term of this agreement. SPYGLASS SHALL NOT BE LIABLE TO THE COMPANY FOR INCIDENTAL, CONSEQUENTIAL, SPECIAL OR PUNITIVE DAMAGES, INCLUDING, WITHOUT LIMITATION, LOST PROFITS OR BUSINESS INTERRUPTION, WHETHER SUCH LIABILITY IS ASSERTED ON THE BASIS OF CONTRACT, TORT OR OTHERWISE, EVEN IF EITHER PARTY HAS BEEN WARNED OF THE POSSIBILITY OF ANY SUCH LOSS OR DAMAGE IN ADVANCE. IN ADDITION, IN NO EVENT SHALL SPYGLASS' LIABILITY TO COMPANY EXCEED THE FEES ACTUALLY PAID BY COMPANY TO SPYGLASS.

IN WITNESS WHEREOF, the parties hereto have executed this agreement as of the Effective Date.

COMPANY:

City of Cheyenne, WY

Print Name: _____

Title: _____

Date: _____

SPYGLASS:

The SpyGlass Group, LLC

Print Name: _____

Title: _____

Date: _____

Simplify Technology Expense Management with SpyCare

Our exclusive technology expense management solution for the middle market combines cloud software, access to our experts and help desk, valuable market data, and annual optimization in a streamlined managed service.



SpyCare gives you the necessary tools for efficient, proactive technology expense decisions to protect initial savings while ensuring your ongoing bottom-line savings.



HealthCheck

- Proactive annual technology audit
- Prevent recurring bill issues and identify erroneous charges
- Account optimization to eliminate guesswork from overall spend



MobilityCare

- Cost and usage visibility dashboards
- Actionable metrics include: trends, utilization, user behavior, and plan modification
- Automated reporting



InSights

- Proactive contract tracking and notification
- Current market pricing for phone, data, cloud, and mobile services
- Catalog of carrier pricing and technology



DedicatedSupport

- Dedicated Account Manager
- Access to SpyGlass help desk for billing issues and more
- Ongoing carrier conversations on your behalf

SpyCare

Powered by SpyGlass

Gain Total Control over Voice, Data, Internet, and Mobility with SpyCare Managed Service Solutions



Streamline Accounts

SpyCare promotes ongoing P&L visibility by creating a consolidated view of your recurring spend across all telecom accounts. We help overcome vague billing and technical jargon to prevent waste in your technology expense budget.



Annual Audit

Take control of your telecom budget health by eliminating unused devices and lines of service. We identify unexplained bill spikes and ensure technology upgrades and changes are incorporated properly into your statements.



Benchmark Pricing

Gain insight into your current telecom program and how it stacks up within your industry and location by service type. Our benchmark pricing utilizes over 20 years of data across 12,000+ businesses to provide pricing comparisons on telecom services.



Carrier API for Mobility

Quickly identify your mobility program overspend based on line utilization with our MobilityCare dashboards. We create and email customized reports to drive awareness of plans, features, usage, and overall spend, including taxes, fees and surcharges.



Contract Tracker

Avoid carrier contract auto-renewals and leverage your negotiation technology expense knowledge for stronger pricing. SpyCare compiles your active and inactive contracts for a big picture perspective to ensure you're getting the services you agreed to.



Dedicated Account Manager

SpyCare customers are assigned with a Dedicated Account Manager who proactively monitors your technology environment to promote optimal savings. A central point of contact streamlines communications and avoids coordinating meetings across departments.

